

21STCV20276 21STCV20276

County: los-angeles

Division: Civil Law and Motion

Department: 414

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Case Number: 21STCV20276 Hearing Date: July 2, 2026 Dept: 414

21STCV20276 Marisela Vazquez, et al. v.

Haven Warner Center, et al.

Related to:

24VECV06430 Marisela Vasquez v. Haven Warner

Thursday,

July 2, 2026

[TENTATIVE]

ORDER GRANTING

MOTION FOR RELIEF PURSUANT TO C.C.P. § 473 (b) AND C.C.P. § 664.6 TO REINSTATE

CASE AND CONSOLIDATE FOR THE PURPOSES OF COMPLETING THE MINORS COMPROMISE

[TENTATIVE] ORDER CONTINUING

THE HEARING FOR PETITIONS FOR APPROVAL OF COMPROMISE OF CLAIM OR ACTION OR

DISPOSITION OF PROCEEDS OF JUDGMENT FOR MINOR OR PERSON WITH A DISABILITY

[24VECV06430].

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Manuel Vasquez, age 5

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Luna Vasquez, age 7

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Anthony Ixta, age 16

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Anabelle Ixta, age 15

I.

BACKGROUND

The first amended complaint in the lead matter alleges that residential premises leased by Plaintiffs from Defendants were uninhabitable because of conditions that Defendants allegedly failed to remedy. Plaintiffs allege nine causes of action for breach of warranty of habitability and related claims. Plaintiffs move to reinstate the case, consolidate the cases, and for an order to approve the settlements of four minor Claimants.

II.

DISCUSSION

A.

Motion to Reinstate the Cases

The cases have settled. The court dismissed the lead matter on October 15, 2025, after Plaintiffs failed to comply with the Court's July 28, 2025, order requiring a written response to the OSC re: dismissal or the filing of a request for dismissal and further failed to file petitions for approval of the minors' compromises despite representing that such petitions were being compiled. The Court thereafter rejected a stipulation to set aside the dismissal because no petitions for approval of minors' compromises had been filed in case number 21STCV20276 and no showing of diligence had been made.

Mandatory relief from default is permitted

if the motion is accompanied by an attorney's affidavit attesting to his or her mistake, inadvertence, surprise, or neglect and the motion is made no more than six months after entry of judgment "unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (Sugasawara v. Newland (1994) 27 Cal.App.4th 294, 295.); (Code Civ. Proc., § 473(b).)

Plaintiffs timely filed this motion before the six-month period expired.

The

court has reviewed counsel's motion attesting to his mistake. Accordingly, the motion for relief is GRANTED.

III.

Request to Consolidate

The decision to consolidate is a matter for

the court's discretion. (Muller

v. Robinson (1959) 174 Cal.App.2d

511, 515.) Consolidation is

appropriate where common questions of law or fact are pending and in order to

avoid unnecessary costs or delay. (Code Civ. Proc., § 1048 subd. (a).) The court has discretion to order "a consolidation for

purposes of trial only, where the two actions remain otherwise separate; and a

complete consolidation or consolidation for all purposes, where the two actions

are merged into a single proceeding under one case number and result in only

one verdict or set of findings and one judgment." (Hamilton

v. Asbestos Corp., Ltd. (2000) 22

Cal.4th 1127, 1147.)

Consolidation is appropriate whenever it can be done "without prejudice to a

substantial right." (Jud

Whitehead Heater Co. v. Obler

(1952) 111 Cal.App.2d 861, 867.)

The

court ordered these cases related on January 26, 2025. As both cases involve

common questions of law and fact, the court GRANTS Plaintiffs' motion and

orders the consolidation of both cases. Because the earlier-filed action, case

number 21STCV20276, is the lead case, the consolidated matter shall proceed

under that case number.

IV. Four (4) Petitions For

Approval of Minors' Compromise

A

minor's settlement is valid if approved by the court after a hearing. (Prob. Code, §§3505, 3500.) Each of the four

minors has settled their claims for \$20,000. From each minor's settlement

counsel proposes to distribute \$8,000 for attorney's fees and \$1,100 for

medical expenses incurred. The balance will be deposited into a blocked

account.

Each

minor has recovered from their injuries. An original or a photocopy of any doctor's report containing a diagnosis of the claimant's injuries or a prognosis for the claimant's recovery, and a report of the claimant's current condition, must be attached to each petition as

Attachment 8. A new report is not necessary if a previous report accurately describes the claimant's current condition. The petitions do not include a doctor's report.

V.

CONCLUSION

Accordingly, the motion for relief is GRANTED. The request to consolidate is GRANTED, and upon consolidation the cases shall proceed under case number 21STCV20276. The hearing on the four petitions for approval of the minors' settlements is continued to September 22, 2026, at 8:30 a.m. in Department 414 of the Stanley Mosk Courthouse. Counsel is ordered to file a supplemental declaration 10 court days before the hearing with a doctor's report for each minor. In addition, because Plaintiffs did not file petitions for approval of the minors' compromises in case number 21STCV20276 and instead filed the petitions in case number 24VECV06430, Plaintiffs are ordered, following consolidation, to cure the defects identified in this tentative ruling and refile all petitions for approval of minors' compromises and supporting documents utilizing the lead and consolidated case number, 21STC